

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1010 OF 2013

Subal Sukla Das and another

----- Respondents-Petitioners

=Versus=

Rabaya Begum and others

----- Purchasers –Opposite Parties-
Appellants-Opposite Parties

Ms. Reshma Sultana, with

Ms. Shaheen Sultana, Advocates

----- For the Petitioner

Mr. A. J. Mohammad Ali with

Mr. S. M. Iftekhar Uddin Mahamud, Advocates

----- For the Opposite Party Nos. 1-8

Judgment on: 04.04.2018 and 05.04.2018

At the instance of the present respondents-petitioners, Subal Sukla Das and another, this Rule has been issued calling upon the opposite party Nos. 1-8 to show cause as to why the impugned order dated 10.02.2013 passed by the learned Joint District Judge, 2nd Court, Chittagong in Miscellaneous Appeal No. 47 of 2011 allowing the appeal and setting aside the judgment and order dated 28.10.2010 passed by the learned Assistant Judge, Hathazari, Chittagong in Pre-emption Misc. Case No. 11 of 1980 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present opposite party Nos.9-14 as the applicants filed the

Miscellaneous Case No. 11 of 1980 in the court of the learned Assistant Judge Hathazari, Chittagong claiming right of pre-emption under Section 96 of the State Acquisition and Tenancy Act and also under Section 24 of the Non Agricultural Tenancy Act, 1949. The application of the said pre-emption case contains that the case land originally belonged to Romesh Chandra, Prsanna Kumar and Akhil Chandra in R.S. khatian as the record of right. Romesh Chandra died leaving behind sons namely Sree Goura Hari Sukla Das, Pran Hari Sukla Das, Gobinda Sukla Das, Satish, Shashi, Raimohan and Sridham. Raimohan died leaving behind his brother as legal heirs and Sridham died leaving behind his son Badal Das. The present petitioners became co-sharers in the suit plot by inheritance and they have been living on the land by constructing homestead. The present opposite party Nos. 2 and 3 sold land measuring 6.50 decimals to the opposite party No. 1 by a deed dated 20.04.1976 without serving any notice as required by law. The opposite party Nos. 2 and 3 have been residing in the case land. On 17.01.1980 the opposite party No. 1 came to take possession from the opposite party Nos. 2 and 3 by breaking the homestead and on that date the present petitioners came to know about the sale deed and he confirmed the said sale deed by obtaining a certified copy on 30.02.1980 as to the sale of the land to the opposite party No. 1 as the stranger.

The purchasers opposite party No. 1 contested the case by filing a written objection denying all the statements made in the said

application. It was also contended that the opposite party No. 1 was a co-sharer in the said case holding and the case was bad for defect of parties and barred by limitation. The further contentions of the present opposite party were that the opposite party Nos. 2 and 3 expressed his intention to sale the land at Taka 5000/- (five thousand) and requested all the parties concerned, including, the present petitioners and the opposite party No. 1. The present petitioners refused to purchase, thus, the opposite party No. 1 agreed to purchase within the knowledge of the present petitioners. The opposite party No. 1 (in Miscellaneous Case No. 11 of 1980) purchased the land through the sale deed No. 2895 dated 22.11.1975.

After hearing the parties the learned trial court allowed the Miscellaneous Case by his judgment and order dated 28.10.2010. Being aggrieved the present opposite parties as the opposite party Nos. 1(Ka) -1(Ja) as the appellants preferred the Miscellaneous Appeal No. 47 of 2011 in the court of the learned District Judge, Chittagong which was heard by the learned Joint District Judge, Court No. 2, Chittagong on transfer who by his judgment and order dated 10.02.2013 allowed the appeal thereby reversed the judgment of the learned trial court. This revisional application has been filed challenging the legality of the said impugned order and this Rule has been issued thereupon.

Ms. Reshma Sultana, the learned Advocate, appearing along with the learned Advocate Ms. Shaheen Sultana for the petitioners,

submits that the learned court of appeal committed an error of law resulting in an error in the decision occasioning failure of justice in holding that a co-sharer is not entitled to get pre-emption against another co-sharer in as much as the opposite parties 1-8 are co-sharers by purchase and the Petitioners-Respondents-Petitioners and Petitioners-Respondents-Opposite parties No. 9-14 are co-sharers by inheritance and it is a settled law that application for pre-emption against a co-sharer by inheritance is very much maintainable and against the co-sharer by purchase.

The learned Advocate further submits that the present petitioners accrued right of pre-emption as the co-sharer by inheritance of the same holding being Khatian No. 137 under Section 96 of the Act, 1950 and under Section 24 of the Act, 1949 because the present pre-emptee vendor failed to provide any notice as required under both the laws and the present pre-emptee purchasers opposite party No. 1 was a stranger to the holding, as such, the learned trial court after consideration of the evidence allowed the case but the learned appellate court below failed to consider the important aspects for creation of a pre-emption right under the above provisions of law and facts, as such, committed an error of law, therefore, this court should interfere upon the said judgment and the Rule should be made absolute.

The Rule has been opposed by the present opposite parties.

Mr. A. J. Mohammad Ali, the learned senior Advocate, appearing along with the learned Advocate Mr. S.M. Iftekhhar Uddin Mahamud, submits that the learned trial court without considering the relevant laws for creation of a pre-emption right and the facts in the instant case came to a wrongful conclusion to allow the case but the learned appellate court below after considering the evidence adduced and produced by the parties came to a lawful conclusion to allow the appeal preferred by the present opposite parties by setting aside the judgment and order passed by the learned trial court. But the present petitioners obtain the Rule by misleading the court, therefore, this court should not interfere upon the impugned judgment and the Rule should be discharged.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and order passed by the appellate court below and also perusing the materials in the lower court records, it appears to me that the present petitioners as the pre-emptor applicant filed a Miscellaneous case claiming right of pre-emption upon the land measuring 6.50 decimal appertaining to Plot No. 6485 recorded in the R.S. Khatian No. 137 Mouja- South Madrasha, Police Station-Hathazari, District-Chittagong which originally belonged to Romash Chandra and others. The present petitioners inherited the said case land from the R.S. recorded owners

and have been living in the property by constructing a Tin shed house in their own portion of land. The present opposite party Nos. 2 and 3 Haragobinda Sukla Das and Rebati Mohan Sukla Das as the vendors (present opposite party Nos. 15 and 16) sold the land the opposite party No. 1 (in the Miscellaneous case), namely, Abdus Satter (now deceased) and substituted by the present opposite party Nos. 1-8, by the deed dated 20.04.1976 without giving any prior notice to the present petitioners who are the co-owners of the same holding. Accordingly, the petitioners claimed right of pre-emption under Section 24 of the Non Agricultural and Tenancy Act and under Section 96 of the State Acquisition and Tenancy Act.

On the other hand, the present pre-emptee opposite parties claimed that the predecessors of the present opposite party Nos. 15 and 16 as the vendors wanted to sale the suit land and orally informed all the co-owners by proposing to sale in order to purchase by any of the co-sharers including the present petitioners but the present petitioners declined to purchase the land at Tk. 5000/-(five thousand) but the present petitioners filed the pre-emption case with an ill motive and beyond the stipulated period of time provided under the above two provisions of law, thus, no right of pre-emption accrued in favour of the present petitioners.

In view of the above given factual and legal aspects of this case, this court has to take a decision whether the petitioners as the pre-emptor-applicants could prove their case by providing all relevant

evidence. In order to answer the above question, I have carefully examined the exhibits in the lower court records as well as the judgment and order passed by the courts below. I found from exhibits –B and B(1) being purchase deeds both dated 04.12.1975 and which are the purchase of land from the same holding or joth which have been produced by the present opposite parties in order to show that the pre-emptee purchaser, Abdus Satter was not a stranger to the same joth. I have also considered the depositions of OPW-2, Dana Miah and OPW-3 Abdur Rahman who made consistent statement by way of deposition as to the ownership of the predecessor of the present opposite parties, pre-emptee purchasers. I have also considered the depositions given by the PW-2 Parimal Dutta who deposed in support of the case of the present petitioners who categorically deposed in cross-examination that he was aware of the sale of the land by the opposite party Nos. 15 and 16.

The present petitioners however, claimed that they came to know about the sale deed on 17.01.1980 when the predecessors of the present opposite party Nos. 1-8 came to demolish a house upon the case land and filed the suit on 05.03.1980 which was within the stipulated statutory period. Therefore, the vital question before this court which needs to be answered as to whether the petitioners as the applicant came within time to file the pre-emption case. In this regard, I have considered the deposition of PW-2 and also OPW-2 and OPW-3 from which it transpires that the petitioners had knowledge

about the sale earlier but the claimed of knowledge does not appear to be a genuine date of cause of action for filing the suit. Therefore, the statutory period of 4 months under the above both Section 24 of the Act, 1949 and Section 96 of the Act, 1950 are beyond the limitation period, thus, the suit is barred by limitation.

The settled principle in the cases of pre-emption is that purchase by a co-owner or co-sharers of the same holding would not be a stranger and which has not been barred by either of the above of the two Acts. In order to prove that the present opposite party Nos. 1-8 predecessor of the present opposite party, Abdur Satter was not stranger in the joth which appears from exhibit-B and B(1). Accordingly, the present petitioners did not accrue any right as a pre-emptor either under Section 24 of the Act, 1949 and also under Section 96 of the Act, 1950 (prior to amendment in the year of 2006).

I am now inclined to examine the judgment and order passed by the courts below, the learned trial court came to a wrongful conclusion to allow the miscellaneous case on the basis of the following findings:

“On perusal of deposition of OPW.2 Dana Meah and the OPW.3 Abdur Rahim, it appears to the court that they were tenants in the case land under opposite party No. 1 and the petitioners had knowledge of the same because the petitioners were living in the suit plot next to the case land. The provision of law is that mere presence or knowledge of the pre-emptor while transferring the land under pre-emption cannot take away the statutory right of a pre-emptor to pre-empt the land where the principle of acquiescence and waiver is not specifically attracted.”

On the other hand the learned appellate court below came to a lawful conclusion to allow the appeal preferred by the present opposite parties by setting aside the judgment and order of the trial court on the basis of the following findings:

“This findings of the learned trial court is not justified one because the suit land situated in thana Hathazari mouza South Madarsha i.e. out of municipal area. It is now established by the decisions that the homestead land outside municipal area is pre-empt able U/s. 96 of the S.A.T. Act and not U/s. 24 of N.A.T. Act. Though the petitioners filed this pre-emption case mentioning Section 24 of N.A.T. Act and 96 of S.A.T. Act. But it appears from the record that the petitioners filed 10% money in addition to kabala value.”

In view of the above discussions and after perusal of the judgment and order passed by the learned courts below, I am of the view that the learned trial court committed an error of law by misreading and non considering the relevant evidence produced by the parties in the trial court, however, the learned appellate court after considering properly the evidence as well as the relevant law in this case came to a lawful conclusion and thereby committed no error of law by passing the impugned judgment and order. I am, therefore, not inclined to interfere upon the impugned judgment and order passed by the appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of direction to maintain status-quo in respect of the possession of the case land is hereby recalled and vacated.

The Section is directed to communicate this judgment and decree to the concern court immediately and also directed to send down the lower court records at once.